

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506027	HERNANDEZ vs CROWN AERO, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR IVAN HERNANDEZ

Tentative Ruling:

Plaintiff's Counsel's Motion to be Relieved as Counsel is granted. Proposed Order for signature required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507054	MINTZ vs JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES SET ONE
CVRI2507054	MINTZ vs JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES SET ONE

Tentative Ruling: Hearing continued to 10/19/26.

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) A party propounding interrogatories may move for an order compelling a further response if the party deems that an answer is evasive or incomplete or an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).)

Meet and Confer:

A motion to compel a further response to an interrogatory must be accompanied by a meet and confer declaration. (CCP § 2030.300(b).) The declaration must state facts showing a reasonable and good faith attempt at informal resolution of each issue presented by the motion. (CCP. §2016.040.) The purpose of the meet and confer requirement is to encourage the parties to work out their differences informally so as to avoid the necessity of a formal order. (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016.) Whether a "reasonable and good faith attempt" was made requires an "evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit." (Clement v. Alegria (2009) 177 Cal.App.4th 1277, 1294.)

On April 21, 2026, Defendant served written discovery on Plaintiff, including Form Interrogatories, Set One and Special Interrogatories, Set One. (Decl. of Leahy, ¶ 3.) Plaintiff served responses on April 29, 2026. (Id at ¶ 4.) Counsel for Defendant served

one meet and confer letter on June 10, 2026 to which Plaintiff did not respond. (Id at ¶ 5; Ex. C.) This is insufficient since there has been no meaningful attempt to resolve the issues.

It appears that the majority of the interrogatories at issue involve the disclosure of medical information to which Plaintiff objects on grounds of privacy under the California Confidentiality of Medical Information Act and HIPAA. Medical records are protected by the right of privacy under the California Constitution. (John B. v. Superior Court (2006) 38 Cal.4th 1177, 119.) However, the right to privacy is not absolute and even private information can be disclosed in some circumstances. (Britt v. Superior Court (1978) 20 Cal.3d 844, 855-856.) Personal information can be ordered disclosed if the information is directly relevant and essential to a fair resolution of the action. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1431-1432.) A personal injury plaintiff partially waives some privacy protection by the filing of a lawsuit. (Vinson v. Superior Court (1987) 43 Cal. 3 833, 840.) However, the compelled disclosure must be precise and narrowly tailored. (Britt, supra, 20 Cal. 3d at 856.) Thus, only aspects of the party's medical history which are directly relevant to the incidents and injuries put into issue by the case are discoverable, while the party is entitled to retain the confidentiality of all medical and psychological information that is not directly related to those injuries. (Id at 864.)

In this case, it is clear that Plaintiff has put her mental health at issue by claiming emotional distress related to the alleged wrongful eviction. However, several of the interrogatories appear to be overbroad and seek confidential medical information unrelated to Plaintiff's emotional distress claim. Therefore, as part of the meet and confer process, the parties must discuss the extent of Plaintiff's privacy waiver.